

Ganesh Madhukar Gadekar And Others vs The State Of Maharashtra And Another on 11 November, 2022

Author: Mangesh S. Patil

Bench: Mangesh S. Patil

{1}

CRI APPLN 3235 OF 2022

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD
953 CRIMINAL APPLICATION NO.3235 OF 2022
WITH APPLN/1380/2022
GANESH MADHUKAR GADEKAR AND OTHERS
VERSUS
THE STATE OF MAHARASHTRA AND ANOTHER

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Advocate for Applicants : Mr.Bhokarikar Madhav M.
APP for Respondent No.1 : Mr.S.J.Salgare
Advocate for Respondent No.2 : Mr.N.N.Bhagwat

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CORAM : MANGESH S. PATIL &
ABHAY S. WAGHWASE, JJ.

DATE : 11 November, 2022

PER COURT :-

. Heard.

2. By way of these two separate applications different accused from same case being Regular Criminal Case No.43 of 2022 pending on the file of Judicial Magistrate First Class, Kopargaon, Dist.Ahmednagar, for the offence punishable under Sections 498A, 504 and 506, are seeking its quashment.

3. We have heard Mr.M.M.Bhokarikar, learned counsel for the applicants, Mr.N.N.Bhagwat, learned counsel for respondent No.2 and Mr.S.J.Salgare, learned APP for the respondent No.1.

4. The learned Advocates are unanimous that the couple has decided to amicably settle all the disputes and they have been applied for divorce under Section 13(B) of the Hindu {2} CRI APPLN 3235 OF 2022 Marriage Act, 1955. They advert our attention to the application Exhibit-F to demonstrate that they have inter alia agreed to withdraw all the proceedings initiated by them against each other including the present crime. They, therefore, unanimously request for quashment of the crime and the criminal case.

5. Learned Advocate for respondent No.2 submits that respondent No.2 is personally present in the Court and has instructed him to make such a statement.

6. Considering the nature of the dispute, we find no sufficient and cogent reason to refute the request of the parties. We do not see that the settlement is contrary to any public policy or parties have some ulterior motive. Therefore, we allow both the applications.

7. The FIR No.0005 of 2022 registered at Kopargaon Rural Police Station, Dist.Ahmednagar for the offence punishable under Sections 498A, 504, 506 along with charge-sheet bearing No.12 of 2022 giving rise to RCC No.43 of 2022 pending before the Judicial Magistrate First Class, Kopargaon, Dist.Ahmednagar, are quashed and set aside.

(ABHAY S. WAGHWASE)
JUDGE

SPT

(MANGESH S. PATIL)
JUDGE